

26NWCV00436 26NWCV00436

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-08-19

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Case Number: 26NWCV00436 Hearing Date: August 19, 2026 Dept: L

Defendants City of Artesia and

Melissa Hamilton's Demurrer to the Complaint is SUSTAINED with 30 leave to amend.

Defendants' Motion to Strike
is MOOT.

Defendants to give notice.

Background

This is an action for injunctive relief. On February 5, 2026, Plaintiff Lloyd A. Stevens ("Plaintiff") filed this action against Defendants City of Artesia, Melissa Hamilton, (collectively, "Defendants") and Does 1 to 100. The Complaint alleges that Plaintiff owns two adjacent commercial properties located at 17215 Corby Avenue and 17221 Corby Avenue, Artesia, California ("Subject Properties"). On January 10, 2013, Defendants inspected the Subject Properties and determined that they were "occupied, not vacant, and compliant with applicable zoning and municipal regulations." (Compl., ¶ 8.) Despite there being no material change in the use of the Subject Properties since that inspection, beginning in January 2026, Defendants issued multiple administrative citations under Artesia Municipal Code § 5-24.060, asserting that the properties were "vacant." The Complaint seeks to enjoin Defendants from collecting and escalating administrative penalties prior to adjudication. The Complaint alleges two causes of action for 1) Injunctive Relief, and 2) Declaratory Relief.

On February 10, 2026, the Court

denied Plaintiff's Ex Parte Application for Temporary Restraining Order and Order to Show Cause Re: Preliminary Injunction ("Ex Parte Application"). (2/10/26 Minute Order.)

Defendants now demur to the Complaint.

This matter originally came on for hearing on July 30, 2026. As of that date, no opposition had been filed. The Court continued the hearing to today's date to allow Plaintiff, then in proper, to file a Substitution of Attorney. (See 7/30/26 Minute Order.)

On August 11, 2026, Plaintiff filed a Substitution of Attorney, in which Attorney Benjamin Yrungaray, Esq. was substituted in as counsel. The same day, Plaintiff filed a late opposition to the instant Demurrer.

In the Court's discretion, the Court will consider the untimely opposition.

No reply has been filed as of August 18, 2026.

Requests for Judicial Notice

The Court grants Defendants' Requests for Judicial Notice of the following documents:

- Ordinance

No. 25-966 passed, approved, and adopted by the City Council of the City of Artesia, California on April 14, 2025 (Exhibit E)

- City

of Artesia Municipal Code ("AMC"), Title 5 Public Welfare, Chapter 24 Vacant Properties, sections 5-24.010 Purpose; 5-24.060 Registration and Exemptions; 5-24.070 Registration Procedure; 5-24.080 Notice; 5-24.090 Maintenance Requirements for Vacant Properties; Inspections; 5-24.110 Fees; and 5-24.120 Enforcement (Exhibit F)

Legal Standard

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (“Donabedian”) (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

Meet and Confer

Code of Civil Procedure section 430.41, subdivision (a) and section 435.5 require that the parties meet and confer “in person, by telephone, or by video conference.”

On February 24, 2026, Defense counsel called Plaintiff and left voicemail in an attempt to meet and confer regarding this Demurrer and Motion to Strike. (Chandler Decl., ¶ 8.) Defense counsel also sent a meet and confer letter via email and by USPS regular and certified, return-receipt mail. (Chandler Decl., ¶ 8, Exh. B.) That day, Defense counsel was contacted by attorney Boyd F. Jensen II by telephone, who identified himself as Plaintiff’s friend who previously worked with Plaintiff and his father (deceased). (Chandler Decl., ¶ 13.) Defense counsel offered a 10-day stay on the proceedings to allow Mr. Jensen time to determine if he could represent Plaintiff, but Mr. Jensen responded that he was not able to get in contact with Plaintiff. (Ibid.) As of the date the Demurrer and Motion to Strike was filed on February 27, 2026, Plaintiff has not replied to Defendants’ meet and confer efforts. (Chandler

Decl., ¶ 14.)

The Court finds that the parties did not meet and confer “in person, by telephone, or by video conference.” Nevertheless, the Court will address the merits of the Demurrer and Motion to Strike in interests of judicial efficiency.

Discussion

Defendants demur the first and second causes of action in the Complaint.

“The elements of a cause of action for injunctive relief are (1) a tort or other wrongful act constituting a cause of action; and (2) irreparable injury, i.e., a factual showing that the wrongful act constitutes an actual or threatened injury to property or personal rights which cannot be compensated by an ordinary damage award.” (Brownfield v. Daniel Freeman Marina Hospital (1989) 208 Cal.App.3d 405, 410, citation omitted.) Notably, “injunctive relief is a remedy and not, in itself, a cause of action, and a cause of action must exist before injunctive relief can be granted.” (Camp v. Board of Supervisors (“Camp”) (1981) 123 Cal.App.3d 334, 356.)

“To qualify for declaratory relief, a party would have to demonstrate its action presented two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party’s rights or obligations.” (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909, quotation marks and brackets omitted.)

A cause of action for declaratory relief should not be used as a second cause of action for the determination of identical issues raised in another cause of action. (General of America Insurance Co. v. Lilly (1968) 258 Cal.App.2d 465, 470.) “The availability of another form of relief that is adequate will usually justify refusal to grant declaratory relief.” (California Insurance Guarantee Association v. Superior Court (1991) 231 Cal.App.3d 1617, 1624.) Further, “there is no basis for declaratory relief where only past wrongs are involved.” (Osseous Technologies of America, Inc.

v. DiscoveryOrtho Partners LLC (2010) 191 Cal.App.4th 357, 366, quotation marks omitted.)

Defendants first provide the following context to this action: On April 14, 2025, Defendant City of Artesia (hereinafter, “the City”) adopted Ordinance No. 25-966, which declares that “that vacant properties are a cause and source of blight in both residential and non-residential neighborhoods” in the City, and that properties “that remain vacant and unoccupied for any appreciable period of time become a life-safety hazard, fire hazard and attract crime (frequently involving illegal drug-related activity).” (RJN, Exh. E.)

Defendants assert that the Complaint fails to state a cause of action and is uncertain. Specifically, Plaintiff cannot allege 1) irreparable harm required for the injunctive relief cause of action, and 2) the unavailability of other adequate remedies required for the declaratory relief cause of action. Defendants primarily rely on the Court’s February 10, 2026 denial of Plaintiff’s Ex Parte Application, and Plaintiff’s evidence offered in support of that Ex Parte. (2/10/26 Minute Order.)

In opposition, Plaintiff asserts that the Complaint can be amended to allege that Plaintiff exhausted his administrative remedies. Plaintiff asserts that he “submitted a Request for Administrative Hearing and tendered the fees the City [of Artesia] required to secure a hearing,” but the City denied the request on grounds that it was untimely. (Opp., 3:19-21.) However, the deadline was miscalculated and misrepresented by the City. Plaintiff argues that he need not exhaust administrative remedies where the remedy itself is inadequate. Specifically, Plaintiff’s primary theory is that “[a]ccess to a hearing is conditioned on prepayment of the full, escalating, disputed fines, and the hearing may be delayed sixty days while penalties accrue,” which is unconstitutional. (Opp., 4:12-18.)

As to the injunctive relief claim, Plaintiff further argues that irreparable harm can be alleged. Plaintiff is injured by the penalties that are a precondition to a hearing, and once paid, those penalties are not fully recoverable as a practical matter. Further, Plaintiff can amend the Complaint to allege substantive causes of action that may serve as the basis for the injunctive relief remedy, including “a petition for

writ of mandate under CCP §1085, and a procedural due process claim under Article I, section 7 of the California Constitution.” (Opp., 5:14-16.)

As to the declaratory relief claim, Plaintiff can amend the Complaint to allege that a live controversy exists—i.e., whether the City’s “pay-to-be-heard” requirements are constitutional, whether the City may reverse its 2013 occupancy determination absent changed use, etc.

No reply has been filed.

The Court first takes judicial notice of the exhibits offered in support of Plaintiff’s Ex Parte Application. Exhibits A to D are the purported citations issued to Plaintiff by Defendant City of Artesia. Exhibit E is a “Request for Hearing Form.” All Exhibits state that, if Plaintiff wants to contest a citation, Plaintiff has 21 days to a request a hearing from the date of the citation. All Exhibits state that Plaintiff must pay all citations prior to requesting a hearing. All Exhibits allude to a “Hardship Waiver” that the recipient may submit in lieu of paying a citation. Exhibit E further states that a hearing may occur up to 60 days after the request is filed or after an advance Hardship Waiver is issued.

The Court’s February 10, 2026 ruling on Plaintiff’s Ex Parte Application, states the following, in relevant part:

“The Court initially acknowledges that injunctions may be issued to prevent enforcement of unconstitutional statutes, or valid statutes sought to be enforced illegally, where their enforcement would cause irreparable injury. (See *Novar Corp. v. Bureau of Collection & Investigative Services* (1984) 160 Cal.App.3d 1, 5-6.) However, where an administrative remedy is provided by the statute in question, that remedy usually must be exhausted before any judicial relief is sought—even where the statute is challenged on constitutional grounds. (See *Board of Police Commissioners v. Superior Court* (1985) 168 Cal.App.3d 420, 431-432.)

Here, the Court finds that Plaintiff has not exhausted his administrative remedies prior to filing this lawsuit and ex parte application. Per the citation, if

Plaintiff wishes to contest the citation, he must first do so through an administrative hearing. As noted by Defendant, if Plaintiff disagrees with the decision, he may file a Notice of Appeal with the Superior Court. Plaintiff has otherwise not shown why any exception should apply that would excuse the exhaustion of administrative remedies requirement.

Further,

the Court is not persuaded that the requirement to pay citation fines prior to a requesting an administrative hearing would cause Plaintiff irreparable harm considering 1) the funds may be refunded upon a favorable decision to Plaintiff at the hearing, and 2) appeal is available."

(2/10/26 Minute Order.)

The Court finds that, as currently written, the Complaint does not adequately state a claim for injunctive relief or declaratory relief where there are no allegations that Plaintiff exhausted his administrative remedies or that some exception to that requirement applies.

However, Plaintiff has demonstrated that the Complaint can be amended to correct such deficiencies and clarify Plaintiff's claims.

Accordingly, Defendants' Demurrer to the Complaint is sustained with 30 days' leave to amend.

Motion to Strike

As the Demurrer was sustained with leave to amend, the Motion to Strike is moot.